



OFFICE OF THE POLICE COMMISSIONER
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June 26, 2020

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Christopher Alvarado**
Tax Registry No. 933607
Brooklyn Court Section
Disciplinary Case No. 2017-18254

The above named member of the service appeared before Assistant Deputy Commissioner Paul M. Gamble on December 17, 2019 and was charged with the following:

DISCIPLINARY CASE NO. 2017-18254

1. Said Police Officer Christopher Alvarado, while assigned to the 83rd Precinct, while off-duty, on or about November 23, 2017, within the confines of Kings County, after being involved in an unusual police occurrence, did fail and neglect to remain at the scene and request response of patrol supervisor, precinct of occurrence.

P.G. 212-32, Page 1, Paragraph 1 & 2

**OFF DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF THE SERVICE**

2. Said Police Officer Christopher Alvarado, while assigned to the 83rd Precinct, while off-duty, on or about November 23, 2017, within the confines of Kings County, did wrongfully engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Alvarado impeded a criminal investigation by providing misleading statements to responding on-duty Members of Service.

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT –
PROHIBITED CONDUCT**

3. Said Police Officer Christopher Alvarado, while assigned to the 83rd Precinct, while off-duty, on or about November 23, 2017, within the confines of Kings County, did wrongfully engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Alvarado broke the automobile windows belonging to an individual known to the Department during an off-duty verbal dispute.
(As added)

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT –
PROHIBITED CONDUCT**

4. Said Police Officer Christopher Alvarado, while assigned to the 83rd Precinct, while off-duty, on or about November 23, 2017, within the confines of Kings County, after having been directed by New York City Police Deputy Inspector Sergi Centa to remain at the residence of a family member known to the Department, did fail and neglect to comply with said order. *(As added)*

P.G. 203-03, Page 1, Paragraph 2

COMPLIANCE WITH ORDERS

In a Memorandum dated January 31, 2020, Assistant Deputy Commissioner Paul M. Gamble found Police Officer Alvarado Guilty of all Specifications, in Disciplinary Case No. 2017-18321. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues concerning the misconduct for which Police Officer Alvarado has been found Guilty and deem that a penalty which includes a period of testing and counseling is warranted.

It is therefore directed that Police Officer Alvarado be offered a post-trial negotiated settlement agreement in which he shall forfeit thirty-one (31) suspension days (already served), forfeit twenty (20) vacation days, be placed on one (1) year dismissal probation, submit to ordered breath testing, and cooperate with counseling, as a disciplinary penalty.

If Police Officer Christopher Alvarado does not agree to the terms of this post-trial negotiated agreement as noted, this Office is to be notified without delay.

A handwritten signature in black ink, appearing to read "Dermot F. Shea". The signature is fluid and cursive, with a large initial "D" and a long, sweeping underline.

Dermot F. Shea
Police Commissioner



POLICE DEPARTMENT

January 31, 2020

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2017-18254
Police Officer Christopher Alvarado	:	
Tax Registry No. 933607	:	
Brooklyn Court Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Roger S. Blank, Esq.
387 Park Avenue South- 5th Floor
New York, NY 10016

To:

HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Said Police Officer Christopher Alvarado, while assigned to the 83rd Precinct, while off-duty, on or about November 23, 2017, within the confines of Kings County, after being involved in an unusual police occurrence, did fail and neglect to remain at the scene and request the response of a patrol supervisor, precinct of occurrence. (*As amended*)
P.G. 212-32, Page 1, para. 1 & 2 OFF DUTY INCIDENTS INVOLVING
UNIFORMED MEMBERS OF THE
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P.G. 203-10, Page 1, para. 5 PUBLIC CONTACT-
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P.G. 203-03, Page 1, para. 2 COMPLIANCE WITH ORDERS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 17, 2019. Respondent, through his counsel, entered pleas of Not Guilty to Specifications 2 and 4, and pleaded Guilty to Specifications 1 and 3. The Department called Police Officer Jason Martinez and Deputy Inspector Sergio Centa as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police

Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty of all charges and recommend a penalty of twenty (20) vacation days; forfeiture of thirty-one (31) pre-trial suspension days previously served; and one year of dismissal probation.

ANALYSIS

The following is a summary of the facts which are not in dispute. On November 23, 2017, shortly after midnight, Respondent had completed a Third Platoon tour at the 83rd Precinct. He then met several friends at a restaurant named Carro Cafe in Brooklyn before proceeding on to a restaurant named "718," located in Forest Hills. At this restaurant, he became acquainted with two women. When the restaurant closed at 0400, Respondent and the two women decided to go to a gentlemen's club, where they remained for approximately one hour. Respondent then suggested that he and his two acquaintances continue the evening at his [REDACTED] home, located in [REDACTED]. The women agreed and they drove their car, leaving Respondent's car in Forest Hills. The party of three made a stop for gas and beer, both of which Respondent paid for.

Throughout the evening, Respondent drank approximately six "Hennessy and Red Bull" mixed drinks, consuming two at each venue. Respondent also purchased several drinks for both women and estimated that he had spent approximately \$500-600 by the time they set out for his [REDACTED] home.

At approximately 0530 hours, Respondent had a discussion with his two female friends while riding in the back seat of their car. The details of that conversation are in issue. Respondent broke one of the rear passenger windows of the car with an unopened beer bottle. He stepped out of the car, as did the two women, who called 911. Before police officers could respond to their location, Respondent walked away. Police Officers Martinez and Ramsander from the 83rd Precinct responded to the location and took a report from the two women, who

asserted that a man had broken the window of their car and had walked away. They provided a direction of travel to the police officers, who got back into their police car and drove in the direction they had been provided. Approximately one block away, they encountered Respondent and stopped him. Police Officer Martinez recognized Respondent as a supervisor assigned to the 83rd Precinct who worked the 4 x 12 tour. The details of their exchange are in issue.

The police officers eventually returned to the two women, who informed them that the man they had stopped was indeed the man who had broken their window. The police officers returned to the place where they had stopped Respondent, but he was no longer there. They then contacted a patrol supervisor at the 83rd Precinct, who attempted to locate Respondent at the precinct unsuccessfully.

Deputy Inspector Sergio Centa, the Commanding Officer of the 83rd Precinct, was eventually notified late that morning that Respondent had been involved in an off-duty incident, but could not be located. D.I. Centa attempted to contact Respondent using his Department mobile phone. After several attempts, D.I. Centa was able to speak with Respondent; the details of that conversation are in issue. At the time of that conversation, Respondent was at his [REDACTED] home in [REDACTED]. D.I. Centa then contacted the Duty Captain and directed her to the [REDACTED] address Respondent provided. When she arrived, however, no one answered the door. The Duty Captain then contacted [REDACTED] County Police, who located Respondent at his residence. The Duty Captain then traveled to Respondent's home in [REDACTED] County and transported him back to the 83rd Precinct. Respondent was eventually found fit for duty.

The following is a summary of the relevant trial evidence. Police Officer Jason Martinez testified that on November 23, 2017, he was assigned to First Platoon at the 83rd Precinct; his partner was Police Officer Ramsander (T. 34). At approximately 0539 hours, he received a radio run which first was reported as a "disorderly," then changed to a dispute, changing again to a

crime in progress, that being criminal mischief (T. 35). Martinez and his partner responded to Linden Street and Central Avenue, where they encountered two women standing outside a car, which had a broken window (T. 39-40). The women told Martinez that a male had broken the window and had made a "right onto Central" (T. 40). The damaged car was parked three to four car lengths east of Central Avenue (*Id.*).

Martinez and his partner drove their police car northbound on Linden Street and eventually intercepted a male walking in the middle of the block between Central Avenue and Grove Street (T. 40-41). According to Martinez, Police Officer Ramsander stepped out of the passenger side of their car and told the man to stop. When Martinez stepped from the driver's side of their car and walked over to where the man was stopped, he recognized him and said, "Sergeant Alvarado?" (T. 41, 43). Respondent then nodded his head in response and Martinez told Police Officer Ramsander, "That's Sergeant Alvarado from 'the 4-bys'" (T. 43, 54).

Police Officer Ramsander then said, "Hey, those two ladies back on Linden said you smashed their windows out," to which Respondent replied, "I don't know any ladies down there. I'm just walking over to the 83rd" (*Id.*, 63). Martinez testified that Respondent then "implied that he did see a person running northbound on Central Avenue and an unknown direction. We looked. He just pointed north towards northbound on Central" (T. 44, 80). Martinez testified further that the 83rd Precinct was approximately "two blocks east and one block north¹" (T. 45).

Based upon Respondent's assertions, Martinez and Police Officer Ramsander left Respondent and walked back to the two complainants. When they reached the two women, they asked Martinez, "Why did you let him go?" Police Officer Ramsander responded, "That's not him," to which the women replied, "Yes, that is him." Police Officer Ramsander then said, "No,

¹ I take judicial notice that the 83rd Precinct Stationhouse is located at 480 Knickerbocker Avenue, approximately 0.4 miles from where Respondent was stopped.

that's a police officer . . . on his way to work," to which the women responded, "No, that is him." Martinez and Police Officer Ramsander looked back toward where they had stopped Respondent to discover that he was no longer there (T. 46-47).

Martinez and Police Officer Ramsander then got back into their police car, called for their sergeant to respond to the location, then began a canvass of the area (T. 47). Martinez was unsuccessful in locating Respondent (*Id.*). Martinez testified that during his encounter with Respondent, he seemed to have a calm demeanor and made no mention of a possible robbery (T. 48). Martinez testified further that Respondent did not display any signs of distress at the time of their interaction and did not request the response of a patrol supervisor (T. 81).

Deputy Inspector ("D.I.") Sergio Centa testified that on November 23, 2017, he was the Commanding Officer of the 83rd Precinct (T. 84). Sometime in the morning on Thanksgiving Day, he received a call while off-duty from a supervisor at the precinct, advising him that Respondent had been involved in an off-duty incident and that the command was experiencing difficulty in contacting him (T. 85-86, 107). D.I. Centa, calling from his Department phone, made several attempts to contact Respondent before finally reaching him (T. 87-88). When Respondent answered his phone, D.I. Centa asked him where he was and how he was doing. D.I. Centa also informed Respondent that since he had been involved in an incident, Centa needed "to get to the bottom of it" (T. 88, 103). When Respondent told D.I. Centa that he was at his [REDACTED] home in [REDACTED] Centa told him to "remain until the duty captain could respond to that location and start her investigation" (T. 88-89). D.I. Centa then contacted Captain Esposito, who was the Duty Captain, provided Respondent's location and directed her to "get there as soon as possible" (T. 89).

D.I. Centa testified that when he told Respondent to remain at his [REDACTED] home, he intended that directive to be an order, saying, "Chris, stay at the location. Stay at your [REDACTED]

house and wait for the Duty Captain. She needs to talk to you" (T. 90, 96, 99, 104, 106).

According to D.I. Centa, he later spoke with Captain Esposito, who informed him that Respondent was either not at the address she had been provided or no one was answering the door (T. 91). D.I. Centa then made an unsuccessful attempt to contact Respondent using his Department phone; Captain Esposito advised him a short time later that Respondent had been located by [REDACTED] County police at his residence (*Id.*).

Respondent testified that at approximately 0530 hours on November 23, 2017, he was awakened when the driver of the car began tapping his knee from the front seat; according to Respondent, he had drifted off to sleep while the three were on their way to his [REDACTED] home (T. 125-126). Respondent testified that both women seemed upset and they were telling him that he had to get out of their car (T. 126). As he took in his surroundings, he noticed that there was a housing development to his right and an empty parking lot across the street; he also saw the woman in the passenger seat texting on her phone (T. 127). When he asked the women where he was, they told him, "Brooklyn" (T. 127-128). He asked them, "What happened; why are we here?" They responded that "something [had come] up" and that he had to leave their car (T. 128). Respondent testified that at that point, he began to fear that he was about to become the victim of a robbery (T. 129). He told the women that he did not know where he was and demanded that they return him to his car (left at the restaurant in Forest Hills) or take him to a cab stand; they refused and told him to get out of the car (T. 130). Respondent admitted that as he was speaking to the women, he was gesticulating with his hands while holding a bottle of beer; while doing so, he broke a window in the back seat (T. 131).

Once the window was broken, Respondent and the two women got out of the car; Respondent walked away in one direction and the women walked in the other (T. 132). Respondent conceded that he was aware that the situation he was in was an off-duty incident and

that he should have called for a patrol supervisor at that point (*Id.*). According to Respondent, he was trying to get to a place of safety, which effort was complicated by not knowing where he was (T. 134).

Respondent eventually saw a police car approach him; the car stopped, a female officer stepped out and told him to "Put [his] hands either out or up" (T. 135-138). A second police officer stepped from the vehicle; Respondent recognized him and he, in turn, recognized Respondent (T. 139-140). Respondent testified that the second police officer stated, "That's Sergeant Alvarado from the 4 by 12s" (T. 141). Respondent testified that the officers returned to their vehicle without having any further conversation with him; he denied telling them that he was headed to the 83rd Precinct (*Id.*). The police officers never told him why they were stopping him and he never told the officers what had transpired in the car with his two female acquaintances (*Id.*). Respondent admitted that he did not ask the police officers to call for a patrol supervisor because he was "trying to remove [himself] from the situation as quickly and safely as possible, because of what just happened, and . . . wasn't thinking straight . . ." (T. 142-143).

According to Respondent, it was at only after his encounter with the police officers that he realized that he was within the 83rd Precinct (T. 142, 175-176). He continued walking until he found a convenience store, at which he asked the owner to call him a cab (T. 143). He then took a cab to where his car was parked in Forest Hills and drove to his [REDACTED] residence in [REDACTED] to pick up his [REDACTED] for a Thanksgiving celebration later that day at Respondent's home (T. 143-144).

Respondent acknowledged that he received a telephone call from his Commanding Officer, D.I. Centa, later that morning (T. 144). According to Respondent, D.I. Centa told him that there had been an incident and that his name was associated with it, then asked where he was

and whether he was all right (T. 151). Respondent testified that D.I. Centa did not say anything to him that he believed to be an order to remain at his [REDACTED] home; he believed that D.I. Centa was going to follow up on an additional call with further instructions for him (T. 152).

Respondent testified further that D.I. Centa was directing him to make sure he was available to the Department, but not necessarily then and there at his [REDACTED] home (*Id.*).

Respondent subsequently left his [REDACTED] residence and drove to his residence in [REDACTED] County. He later was contacted by his union delegate, whom he told where he was (T. 153). After that, [REDACTED] County Police officers came to his residence and informed him that they had been contacted about an off-duty incident and that he was to remain at his residence until the arrival of a supervisor (*Id.*). A supervisor eventually appeared at Respondent's residence and he accompanied her back to the 83rd Precinct, where they arrived at approximately 0900 hours (T. 154).

Few things are more difficult, yet more fundamental to the role of a trier of fact, than attempting to reconstruct past events based on opposing accounts. In a hearsay case of this nature, particular attention must be paid to the evidence. Factors such as corroboration, consistency, bias, logic and the degree to which an account comports with common sense and general human experience must be taken into account (*Maloney v. Suardy*, 202 A.D.2d 297 [1st Dep't 1994]).

I find the testimonies of Deputy Inspector Centa and Police Officer Martinez to be credible, forthright and reliable. Both Members of Service are disinterested witnesses in this proceeding and their respective testimonies align with the faithful execution of their respective duties.

I credit Respondent's testimony concerning his pleas of guilty; I cannot do so for the balance of his testimony without the suspension of disbelief. Respondent testified that when he "woke up," he realized that he was in a location he did not recognize. He was in Brooklyn, within the 83rd Precinct, and several blocks from the stationhouse. It is unreasonable to believe that even an adult who had been drinking, let alone a police sergeant who had been assigned to that precinct for six months as a supervisor, did not have the presence of mind to look at a street sign to orient himself.

He testified further that he believed he was about to be robbed, based upon a purported change in the demeanor of the two women he was with. Based upon this belief, he did not feel safe remaining at the scene of what he acknowledged qualified as an off-duty incident.

Respondent's assertion that he believed he was about to be robbed is dubious. He admitted that he never considered informing the women that he was a New York City Police Officer despite their behavior being of such concern to him. He further admitted that he never considered informing Police Officers Martinez and Ramsander that the women were behaving strangely and that he feared for his safety. Finally, he asserted that he walked away from, as opposed to running away from, the two women and their car. All of the above-described actions Respondent admitted to taking are inconsistent with those of a person who genuinely believed that they were about to become the victim of a crime.

This Tribunal will not belabor the obvious: Respondent's narrative is on its face implausible. It is much more likely that this is an *ex post facto* explanation crafted to avoid professional scrutiny over an expensive flight of fancy which ended with a broken car window. Although he was later found to be fit for duty, Respondent's training, experience, and judgment were probably compromised, not only by his admitted consumption of six "Hennessey and Red

Bulls," but also the lack of sleep. Based upon the statements and actions he attributed to his two companions, a more logical interpretation is that at 0530 hours, after being out all night drinking, they were ready to end their serendipitous association and go their separate ways.

Specification 1: Off-Duty Incident

In accordance with Respondent's plea of Guilty, I find him Guilty of Specification 1.

Specification 2: Impeding a Criminal Investigation

I find that the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent impeded a criminal investigation. Police Officer Martinez testified credibly that when he and Police Officer Ramsander stopped Respondent, Ramsander confronted him with the accusation that two women had accused him of breaking their car window and asked him what he knew about it. While Respondent denied under oath that he was ever confronted with the aforementioned information, Police Officer Martinez testified that not only was Respondent asked the question, but that he told the police officers that he did not know the women and that he saw someone running northbound on Central Avenue. Respondent's statement was not only untruthful but under the circumstances, as he would have perceived them at that time, could only reasonably be understood to be an attempt to distance himself from the investigation into his misconduct by deflecting attention to a non-existent vandal.

Accordingly, I find him Guilty of Specification 2.

Specification 3: Engaging in an Off-Duty Dispute

In accordance with Respondent's plea of Guilty, I find him Guilty of Specification 3.

Specification 4: Failure to Comply With an Order

I find that the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent failed to obey an order. Deputy Inspector Centa testified credibly that he spoke with Respondent by telephone several hours after the off-duty incident and

told him that he needed to remain at his location to meet with the Duty Captain. At the time of their conversation, Respondent was aware that he had not only been involved in an off-duty incident, but that he had falsely represented to the responding police officers that he was on his way to work at the 83rd Precinct. Respondent certainly was aware that he had left the scene of the incident and traveled to his [REDACTED] home in [REDACTED] without alerting anyone in the chain of command of his whereabouts. Under these circumstances, Respondent's assertion that he interpreted D.I. Centa's order as merely a direction to maintain telephone contact, rather than an order to remain at his present location for the arrival of the Duty Captain, is neither credible nor reasonable.

As a Member of Service, let alone as a supervisor at the time, Respondent is chargeable with knowledge of the Patrol Guide procedure requiring him to remain at the scene of an off-duty incident and to request the presence of a supervisor. I find further that since Respondent entered a plea of Guilty to Specification 1, he thereby admitted his knowledge of the procedure, his obligation to comply with it and his failure to do so in this instance.

Accordingly, I find him Guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on January 20, 2004. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department Advocate has recommended a penalty of 31 pre-trial suspension days previously served; forfeiture of 20 vacation days; one-year dismissal probation; alcohol breath-testing; and counseling. At the outset, I note that this Tribunal is not empowered to make penalty recommendations regarding breath-testing and/or counseling.

Counsel for Respondent has argued that Respondent's demotion to police officer², the resulting loss of salary and being dropped from the lieutenant's promotion list are, in effect, pre-trial punishment. While I do not minimize the real-life effects of these administrative decisions, they are collateral to the charged misconduct; as such, I do not find them mitigating. Counsel for Respondent has also argued that Respondent's agreement to compensate the two women \$1,500 for the broken window is a mitigating factor; I disagree.

Respondent testified in mitigation that while he accepted responsibility for breaking the passenger window of the car in which he was riding, the glass broke when he accidentally struck it with a beer bottle while gesturing with his hands. He testified further that he left the scene of the incident with the two young women because he feared that he was being set up to be robbed.

Although falling asleep in the back of a car with a bottle of beer in hand strongly suggests the absence of good judgment, it is certainly possible that Respondent broke the window unintentionally. Respondent's attempt to reframe the unsatisfying end to an evening of merriment as a desperate escape from potential mayhem, however, is lamentable. I find that in his attempt to cast himself in the role of a potential victim, he took liberties with the truth which fly in the face of common sense and which are unbecoming for a Member of Service.

What I find most disturbing is Respondent's post-incident attempt to evade accountability for his poor decision-making. He walked away from an off-duty incident in direct violation of the Patrol Guide, then lied about his involvement to the first Members of Service he encountered. He further told those police officers he was headed to his precinct, an assertion upon which they relied. When the chain of command at the 83rd Precinct discovered that his assertion was a ruse, they expended valuable time trying to ascertain his whereabouts instead of fighting crime, which is their paramount mission.

² At the time of the incident, Respondent was a probationary sergeant.

When D.I. Centa ordered him to remain at his [REDACTED] home for the arrival of the Duty Captain, Respondent had to know that he would be held accountable for his conduct at the scene of the incident. Instead of presenting himself for debriefing like a professional, as he was directed to do, Respondent sought to evade accountability by seeking temporary refuge at his home in [REDACTED] County. Because of his immature and impulsive act, another law enforcement agency had to become involved and the Duty Captain had to travel outside the city limits. As a then-supervisor charged with ensuring subordinate Members of Service adhere to rules and regulations, his actions set a horrible example and are inconsistent with good order and efficiency.

Members of Service willingly subject themselves to a higher standard of conduct than civilians. That dedication to duty is put to the test when a police officer has to submit himself to scrutiny for his behavior. In this instance, Respondent failed the test of fidelity to his oath.

Accordingly, I recommend that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Administrative Code § 14-115 (d), during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. I further recommend that he forfeit 31 pre-trial suspension days previously served and 20 vacation days.

Respectfully submitted,



Paul M. Gamble
Assistant Deputy Commissioner Trials





POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER CHRISTOPHER ALVARADO
TAX REGISTRY NO. 933607
DISCIPLINARY CASE NO. 2017-18254

Respondent was appointed to the Department on January 20, 2004. On his three most recent performance evaluations, he received a 3.0 overall rating of "Competent" in 2018, a 4.0 rating of "Highly Competent" in 2017, and a 4.5 rating of "Highly Competent/Extremely Competent" for 2016. He has been awarded four (4) medals for Excellent Police Duty. In his 16 years of service, [REDACTED]

Respondent has no formal disciplinary history. In July 2010, he was placed on Level 1 Force Monitoring for having received 3 or more CCRB complaints in a one-year period. In July 2011, that was upgraded to Level 2 Force Monitoring. Respondent remained on Level 2 Force Monitoring until January 20, 2014.

In connection with the instant matter, Respondent was suspended for 31 days. Thereafter, he was placed on modified assignment and demoted from probationary sergeant to police officer. Respondent remains on modified duty.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials